

Santosh Kumar And 2 Others vs State Of U.P. Thru. S.O.P.O. ... on 14 July, 2010

Court No. - 5

Case :- U/S 482/378/407 No. - 2911 of 2010

Petitioner :- Santosh Kumar And 2 Others

Respondent :- State Of U.P. Thru. S.O.P.O. Mohanlalganj Lucknow And
Anors.

Petitioner Counsel :- Mahesh Kumar Sharma

Respondent Counsel :- Govt. Advocate

Hon'ble Vedpal,J.

This petition under Section 482 Cr.P.C. has been filed by the petitioners for quashing the entire proceedings including charge sheet submitted by the Police in Case No.635 of 2006(Case Crime No.150 of 2005) under Sections 498-A,323,504 and 506 I..P.C. and 3/4 Dowry Prohibition Act, Police Station Mohanlalganj, Lucknow pending in the Court of Special Chief Judicial Magistrate (Customs)Lucknow.

Notice on behalf of opposite party no.1 has been accepted by learned AGA.

Sri Aashish Mishra Advocate has filed power on behalf of opposite party no. 2,Smt. Vimla Devi.

Heard learned counsel for the petitioners, learned AGA as well as learned counsel for opposite party no. 2.

It reveals from the perusal of the record that on the basis of one FIR lodged by opposite party no. 2, Smt. Vimla, the matter was investigated upon by the Police and charge sheet for the offence punishable under Sections 498-A,323, 504 and 506 I.P.C. and 3/4 Dowry Prohibition Act was filed against the petitioners . The petitioners have approached this Court for quashing of the said charge sheet on the ground that the proceedings under Section 125 Cr.P.C. as well as under Section 13 of the Hindu Marriage Act were also pending between the parties and they have amicably settled both the cases and have entered into compromise not to proceed further against each other.In the circumstances, the continuance of proceedings will be misuse of the process of the Court and in view of Hon'ble the Supreme Court expressed in B.S. Joshi and others Vs. State of Haryana and another (2003) 4 Supreme Court Cases 675 the charge sheet should be quashed.

Learned AGA has no objection if proceedings are quashed. Opposite Party No.2, Smt. Vimla Devi has filed counter affidavit indicating therein that she has entered into compromise with her husband and she is living with her husband and she is also present in the court.

It reveals from the perusal of the record that parties have amicably settled their disputes and

continuance of these proceedings will only misuse the process of the Court as it has been held in the case of B.S. Joshi (Supra) Section 320 does not limit or affect power of the Court under Section 482 Cr.P.C. to quash the proceedings, if they are in misuse of the process of the Court.

In view of above, when the parties have entered into compromise, the petition is allowed and the proceedings along with charge sheet of case no.635 of 2006 (Crime No.150 of 2005) Smt. Vimla Devi Vs. Santosh Kumar Pal under Sections 498-A,323,504,506 I. P.C. and 3/4 Dowry Prohibition Act, pending in the Court of Special Chief Judicial Magistrate (Customs) Lucknow are hereby quashed.

Order Date :- 14.7.2010 Tripathi